

Written Response Form 19

Provincial Court Family Rules

You can complete and file most family forms online using the Family Law Act Online Forms Service.

Access the service at justice.gov.bc.ca/apply-for-family-order.

The free service includes guided pathways that ask you questions and put your answers into the required court forms. When you're finished, you can save and file your forms electronically or print them to file in person.



A PDF version of this form is available online for download at www.gov.bc.ca/court-forms.

For courthouse locations, addresses, and contact information visit: www.gov.bc.ca/courthouselocations

Need assistance with how to complete this form?

Refer to the guidebook if you need more information how to complete this form and respond to an application. Find it online, with interactive links, at www.gov.bc.ca/court-forms or pick up a printed copy from your local court registry.

Family law:

The [Provincial Court Family Rules](#) set out the steps that you must take and the forms you must complete in a family law case. These rules apply to cases in Provincial Court about matters under the [Family Law Act](#) and the [Family Maintenance Enforcement Act](#).

You can find the Rules and Acts on the BC Laws website at www.bclaws.gov.bc.ca.

Preparing a Written Response Form 19

Complete this form if you want to file a written response in reply to any of the following applications that have been served to you:

- Application for Case Management Order Form 10
- Application About a Protection Order Form 12
- Application About Priority Parenting Matter Form 15
- Application for Order Prohibiting Relocation of a Child Form 16
- Application About Enforcement Form 29
- Application for Order under the *Family Maintenance Enforcement Act* Form 35

To reply to an application listed above **you must attend court** on the date and time referred to in the application for the court appearance and **you may also file a written response** using this form, but you are not required to file a written response. A written response is used in addition to, not in place of, attending court.

The written response must be filed and served on each other party before the date referred to in the application for the court appearance.



Need legal help?

Understanding the law and making sure you get correct information is important. If you get the wrong information or do not know how the law applies to your situation, it can be harder to resolve your case. Getting advice from a lawyer can help.

Legal Referral Service

Visit <https://bclegal.help/> or call at 604-687-3221 to consult a lawyer for up to 15 minutes for free

Legal Aid, Duty Counsel and Family Advice Lawyers

Visit <https://legalaid.bc.ca> or call 1-866-577-2525

Legal Services and Resources

Visit the ClickLaw Legal Services page at www.clicklaw.bc.ca/services



Filling out the form and preparing to file it

Make sure you follow the instructions in the form and include all the required information. You don't need to use any special wording. Try to be clear and concise.

If you complete the form by hand, be sure it's readable.

How do I prepare the form for filing?

- print or make copies of the document: one set for you, one set for the court, and one set for each other party
- staple or secure each package of documents together



Filing the response at the registry

After you've filled out your form, you must file it at the [Provincial Court Registry](#) where the existing Provincial Court case with the same parties is filed.

File the form:

- electronically using the [FLA Online Forms Service](#)
- in person at the court registry
- by mail
- by email, as referenced in Notice to the Profession and Public [NP 28 Current Court Operations](#), or
- by fax filing using the [Fax Filing Cover Page Form 52](#)

There are no fees for filing Provincial Court family documents.

Be sure to bring all copies of the documents to the registry if you are filing in person.

The registry clerk will review your package to make sure it's complete before filing it. You'll be given a copy for your records along with a copy for the other party.



Serving the response

Serve a copy of the response on each other party.

They must be served before the date referred to in the application for the court appearance.

The response can be served by **ordinary service to the address of service** for each party. Their address for service is the address they have provided to the court.

See the guidebook if you need more information about serving the application.

You may need proof that the response has been served. The person serving the documents must complete a [Certificate of Service Form 7](#) to prove service. You must attach a copy of the documents to the Certificate of Service. Remember to make a copy before the documents are served.



Attending the court appearance

A judge can make decisions based only on the information presented by the parties. In addition to your application, you can provide evidence including any additional affidavit(s) and spoken evidence provided in court.

If you can't attend court using the method of attendance set out in your application, you can request the court's permission to attend using a different method of attendance by filing an [Application for Case Management Order without Notice or Attendance Form 11](#).

Can I get help in another language?

Free spoken-language interpreters for people who do not speak English and visual language interpreters for people who are deaf or hard of hearing are available **for all family law court appearances**.

It's important to let **court registry staff know as soon as possible** that you need an interpreter. If they can't arrange an interpreter in time, the judge may have to re-schedule your case.

For most things that go on outside the courtroom, you'll need to find your own interpreter. Some people ask a friend or family member. Others hire a professional interpreter.

Written Response to Application

- ☐ for case management order
- ☐ about a protection order
- ☐ about a priority parenting matter
- ☐ about prohibiting relocation of a child
- ☐ for order under the *Family Maintenance Enforcement Act*
- ☐ about enforcement

COURT STAMP

Registry location:

Court file number:

Document number:
For registry use only

Form 19

Provincial Court Family Rules
Rules 86, 137, 142.1

This Written Response to Application provides notice to each party, and the court, of a party's reply to an application.

Please read before completing the form:

- You can use this form to file a written response to an application. You must still attend court. It is used in addition to, not in place of, attending court.
- For guidance filling in this form, please read the guidebook. The guide is available online at www.gov.bc.ca/court-forms or from your local court registry.

Part 1 | About the parties

1. My full name is:
Full name of party
- My date of birth is:
(dd/mmm/yyyy)
2. The other party's full name is:
Full name of party/parties

i Copy the party information from a filed document in your case. It should match.

Part 2 | Replying to an application

3. I am completing this written response **to reply to the application about:**
Briefly describe the type of application
- made by** (name of person):
Name of person who made the application
- on** (filed date):
(dd/mmm/yyyy)
4. ☐ I understand to reply to the application **I must attend court** on the date and time for the court appearance referred to in the application **and I may file and serve** this written response on each other party before that date.

Part 3 | Agreement with order – Complete this part only if you agree to all or part of the order requested by the other party in their application. You may leave this part blank.

5. *Select the option that applies and complete the additional information, as applicable*
- ☐ I agree to the order as requested by the other party
- ☐ I agree only to the following order term(s) requested by the other party:
Provide details of the order term(s) you agree to

6. I wish to provide the following **information to the court** about the application even though I agree:

Part 4 | Disagreement with order – Complete this part only if you disagree with all or part of the order requested by the other party in their application. You may leave this part blank.

7. *Select the option that applies and complete the additional information, as applicable*

- ☐ I **disagree with the order** as requested by the other party
- ☐ I **disagree only with the following order term(s)** as requested by the other party:

Provide details of the order term(s) you disagree to

8. I **do not agree with the order requested** by the other party because:

9. I am **applying for the order to be made as follows**:

Provide the details of the order(s) about this issue that you want the court to make instead of what the other party has asked for



If you want an order about a different matter, including a family law matter, you must file your own application.

10. The **facts** on which this written response is based are as follows:

Provide the facts you want the court to consider when they are making a decision about the application, including why the order you are requesting should be made instead of the order the other party has asked for



If you choose to, you can prepare an Affidavit – General in Form 45 to provide evidence in writing to support your response. You can also give spoken evidence in court.



If you need more space, select the box, and remember to include your additional page(s).

To add more, select the box below and attach a page with the additional information

☐ **Additional page(s) (see attached)**

Part 5 | Address for service

11. My **address for service** of court documents and contact information is:

You must provide an address for service and contact number, but it does not have to be your own if you don't want to

Address:

City:

Province:

Postal Code:

Email:

Telephone:

Lawyer's name and firm name (if applicable):



For more information about how this information will be used and who will have access to it, see the guidebook.